

Court No. - 40

Case :- WRIT - C No. - 37156 of 2022

Petitioner :- Shivam

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mithilesh Kumar Tiwari

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Ajit Singh,J.

Heard learned counsel for the petitioner and Sri Pranjal Mehrotra, learned counsel for the electricity department.

Present writ petition is preferred with request to issue a direction in the nature of mandamus commanding the respondent no.2 & 3 to provide electricity connection of 15 H.P. to the petitioner to operate the Ganna Perai Power Kolhu situated in Khasra Plot Nos. 84 & 71 of Village Talampur Kumrara, Pargana Nahtaur, Tehsil Dhampur, District Bijnor.

Learned counsel for the petitioner submits that the petitioner is resident of Village Davkhedi, P.S. Noorpur, Tehsil Chandpur, District Bijnor. He applied online for an electricity connection of 15 HP for operating the Ganna Perai Power Kolhu for installation of the electricity connection on 15.11.2022 before respondent no.3 and paid online application fee of Rs. 118/-. The respondents had not accorded the electricity connection of the petitioner till date and the application is still pending before respondent no.3.

Learned counsel for the respondents submits that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained Act. The petitioner can pursue the remedy as is available to him under the Electricity Act, 2003 read with provisions of U.P. Electricity Code, 2005.

No useful purpose would be served in keeping the writ petition pending.

In view of above, without expressing any opinion on the merits of the issue and considering the facts and circumstances of the case and with the consent of parties, this writ petition is disposed of finally with a direction to the Executive Engineer, Paschimanchal Vidyut Vitaran Nigam Limited Division-1, Dhampur, District

Bijnor (respondent no.3) to look into the grievance of the petitioner and redress the same within a period of two weeks from the date of production of a certified copy of this order before him.

Order Date :- 2.2.2023

Abhishek Gupta